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California lawmakers approve new tax for guns and ammunition to pay for school safety improvements

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SACRAMENTO, Calif. (AP) — California lawmakers on Thursday voted to raise taxes on guns and ammunition to pay for security improvements at public schools and gun violence prevention programs.

The federal government already taxes the sale of guns and ammunition nationwide. The government gives that money to the states, which spend it on wildlife conservation and hunter safety programs.

California’s proposed tax, if it becomes law, would be 11% — matching the highest tax imposed by the federal government on guns.

“Don’t let politics stand in the way of saving the lives of our children and providing mental health care in our school districts,” Democratic state Sen. Anthony Portantino said. “Fear should not be on the brow of a parent when they send their kids to school.”

Most states don’t have a special tax just for guns. Pennsylvania collects a $3 surcharge on gun sales and uses the money to pay for background checks. Fees in California total more than $37 on gun sales, with most of that money covering the cost of background checks.

The bill now heads to Democratic Gov. Gavin Newsom, who has until Oct. 14 to decide whether to sign it into law. It's not clear what he will do.

Newsom has opposed some high-profile tax increase proposals in recent years. But he has also been on a crusade to improve gun safety, signing a law last year that lets private citizens enforce the state's ban on assault weapons by filing civil lawsuits against anyone who distributes the weapons, parts that can be used to build the weapons, guns without serial numbers, or .50-caliber rifles.

“He has been an incredible national leader and champion on gun violence prevention issues and continues to be bold on this front,” said Assemblymember Jesse Gabriel, a Democrat from Los Angeles and the bill's author. “We have every expectation that he will sign the bill.”

A spokesperson for Newsom said the governor would “evaluate the bill on its merits.”

California's proposed tax would not apply to people who buy the guns. Instead, the state would make the businesses that sell guns and ammunition pay the tax. However, most of the time businesses will raise prices to cover the cost of the tax. The tax would not apply to police officers and it would not apply to businesses with sales of less than $5,000 over a three-month period.

“It's a poll tax. It's a tax on exercising a constitutional right,” said Chuck Michel, president of the California Rifle and Pistol Association, who opposes the tax. “We're going to have to file a lawsuit to challenge it.”

The federal tax on guns and ammunition has been in place since 1918 and has survived multiple lawsuits. But things changed last year when the U.S. Supreme Court imposed a new standard for interpreting the nation's gun laws. The new standard relies more on the historical tradition of gun regulation rather than public interests, including safety.

A legislative analysis of the California proposal said it is an “open question" whether a lawsuit challenging the tax

would be successful.

The tax would take effect on July 1 and would generate about $159 million in revenue annually, according to an estimate from the California Department of Tax and Fee Administration. The first $75 million of that money would go to the California Violence Intervention and Prevention Grant Program. In 2020, the program funded projects targeting young people in gangs, including sports programs, life coaching and tattoo removal.

The next $50 million would go to the State Department of Education to enhance safety at public schools, including physical security improvements, safety assessments, after-school programs for at-risk students and mental and behavioral health services for students, teachers and other school employees.

Some lawmakers questioned the purpose of raising taxes on guns in a state that already has one of the lowest gun death rates in the country. California ranks 43rd out of 50 states with 9 deaths for every 100,000 people, according to 2021 data from the Centers for Disease Control and Prevention.

But violent crimes have increased recently. The violent crime rate increased by 6.1% in 2022, according to the California Department of Justice. Homicides decreased in 2022 by 6.6%.

“We have a duty to legislate through facts and not fear,” said state Sen. Marie Alvarado-Gil, a Democrat from Jackson, who did not vote on the bill.

Gabriel said his intent was not to discourage people from buying guns, but to provide a stable source of funding for gun violence programs “which I believe, with every fiber of my being, are going to save lives and protect communities in state of California."

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Associated Press reporter Trân Nguyễn contributed to this report.

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